



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

February 27, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202105284 (Incident Date: August 29, 2021) regarding Police Officer Vito Ingrassia, Tax No. 960706 (DADS No. 2022-27665)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter wherein CCRB substantiated a single allegation of an improper threat to damage an individual's property against Police Officer Vito Ingrassia.

In this matter, an individual requested police assistance because he had been locked out of his residence and the co-occupant was refusing to allow him to re-enter. Responding officers spent significant time trying to explain to the co-occupant that she would be subject to arrest if she did not allow the individual re-entry to his home. Officer Ingrassia finally stated to the co-occupant who was located on an elevated deck above the officers, "if we can't get the door open, ESU will come open the door and we will come up and get you and we will arrest you." Officer Ingrassia's statement did not make any reference to damaging the door or any other property of the co-occupant, and was made in an effort to gain the compliance of the co-occupant in letting the individual back into his home. It must be noted that the relevant Department Legal Bureau Bulletin (Volume 49, Number 3) specifically states that "often the threat of arrest is sufficient to inspire a landlord to return access to a dwelling unit to a dispossessed tenant," which is what actually happened in this case, when the co-occupant subsequently decided to allow the individual to re-enter his home.

Therefore, based on the foregoing, Police Officer Ingrassia will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat to Damage Property).

Yours truly,

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

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